



Superior Court of California County of San Benito

Tentative Decisions for August 26, 2026

Courtroom #1: Judge J. Omar Rodriguez

FL-20-00243 Castro, Robert vs. Pena, Dominique

Respondent's Request the Court to Reconsider the Orders issued on June 17, 2026, shall be deemed a request pursuant to Code of Civil Procedure section 1008 based on new facts, which include Respondent's unavailability due to health issue. The parties shall return to court on September 23, 2026, at 8:30 a.m. to address the merits of Petitioner's March 4, 2026, Request for Order.

FL-24-00059 Granados Lopez, Norma Angelica vs. Mijangos, Armando Aguilar

Petitioner's Request for Order is GRANTED, but Petitioner must comply with Superior Court of California – County of San Benito Local Rule 2.11.

FL-25-00071 Tapia, Irish vs. De La Cruz, Itzhecati

As to Petitioner's request to bifurcate, the Court will grant the request to bifurcate the marriage reserving jurisdiction over all remaining issues in the case, including date of separation. The bifurcation will be conditioned on the following: 1) the provision of division of property found on page 2 of form FL-315 is applied mutual to both parties; 2) the health insurance provision, which only applies to existing health and medical insurance, found on page 2 of form FL-315 applies to both parties; 3) the retirement benefits provision found on page 2 of form FL-315 applies to both parties; 4) the social security benefits provision found on page 2 of form FL-315 applies to both parties; 5) the beneficiary designation – nonprobate

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any objections or concerns.**

transfer found on page 2 form FL-315 applies to Petitioner; and 6) the community rights provision found on page 3 of form FL-315 applies to both parties.

As to the concern regarding the service of a preliminary declaration of disclosure, Family Code section 2337 requires that the nonmoving party be served with notice of the motion to bifurcate along with service of a preliminary declaration of disclosure with a completed schedule of assets and debts unless it has already been served or the parties stipulate in writing to defer service. Here, Petitioner filed a declaration regarding service of Petitioner's Declaration of Disclosure on October 30, 2025.

FL-25-00101 Alva, Jessica vs. Hansen, Harrison

Petitioner's July 14, 2026, for visitation and child support is denied in part. The Department of Child Support Services is currently enforcing child support. Therefore, this court no longer retains jurisdiction to make orders pertaining to child support. As a result, the request as to child support is denied due to the lack of jurisdiction.

As to the request for visitation, Respondent currently has a pending petition for a domestic violence restraining order against Petitioner. (See San Benito County Court Case no. DV-26-00078.) Depending on the outcome of that matter, Family Code section 3044 may apply. Therefore, the hearing as to the request for visitation is continued to November 6, 2026, at 1:30 p.m. to be heard with DV-26-00078.

FL-26-00143 Chavez, Maria vs. Orejel, Rene

Petitioner filed a Request for Order on July 20, 2026. The parties reached a full agreement as to custody and visitation. The remaining issue left to be resolved is spousal support. Petitioner's Request for Spousal Support is DENIED. In order spousal support, the court shall consider a variety of factors concerning the extent to which the earning capacity of each party is sufficient to maintain the standard of living established during the marriage. (Fam. Code §4320.) Here, the only information provided to the Court regarding the section 4320 factors were the parties respective income and expense declarations where it is undisputed that Petitioner outearns Respondent.

END OF TENTATIVE DECISIONS